The examination is being carried out on the **following application documents**

Description, Pages

1-118	as published	
119-130	filed in electronic form on	27-04-2020

Claims, Numbers

1-4	filed in electronic form on	27-04-2020

Drawings, Sheets

1/17-17/17	as published

1. Reference is made to the following documents:

D1 US 2013/123231 A1

D2 EMERSON T R ET AL: "743. Optical rotatory dispersion. Part XIX. A series of acids, imidazolines, amidinium chlorides, and their copper complexes, related to mandelic acid", JOURNAL OF THE CHEMICAL SOCIETY, 1965, pages 4007-4014, XP009504882

D3 Pu-Cha Yan ET AL: "Direct asymmetric hydrogenation of [alpha]-keto acids by using the highly efficient chiral spiro iridium catalysts", Chemical Communications, vol. 50, no. 100, 2014, pages 15987-15990, XP055436828

2. The claimed subject-matter is novel (Article 54 EPC) at least due to present step c) and to the intermediate of formula (L).

3. Inventive step

D1 is the closest prior art to the claimed subject-matter because it discloses the present product of formula (J). In D1, said product is prepared by ring opening of a benzyl epoxide and chiral resolution with a chiral preparative HPLC (D1, pages 173-174 example 76 - compound 76.2). The two claimed processes have a different synthetic route: they start with the phenyl magnesium bromide derivative of formula (R), they comprise the asymmetric reduction of the α-keto acid of formula (O) into the α-hydroxy acid of formula (N) (present step c)) and involve the intermediate of formula (L).

The technical problem underlying the present application is the provision of alternative processes to prepare the compound of formula (J).

In view of the information provided in the description (examples 6-8), it can be assumed that this problem has been solved. D2 discloses the α-hydroxy acid of formula (N) but it is obtained by chiral resolution of an o-methoxymandelic acid (D2, page 4013 - experimental part). D3 discloses the asymmetric reduction of the α-keto acid of formula (O) but it leads to a different enantiomeric form (D3, table 2 entry 4). The intermediate of formula (L) has never been disclosed (even in a racemic form). Therefore, even combining the teaching of the prior art, the skilled person would not arrive at the claimed processes. Consequently, it is considered that the present application involves an inventive step (Article 56 EPC).

4. Clarity

The description should be adapted to the claims (Article 84 EPC). It is reminded that in order to meet the requirements of Article 84 EPC (see also Guidelines F-IV, 4.3), the claims have to be supported by the description. Any disclosure in the description inconsistent with the claims should be excised. Reference to embodiments not covered by the claims should be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the claimed subject-matter. In such case, the fact that an embodiment is not covered by the claims must be **prominently** stated (the mere replacement of the word "invention" by "disclosure" or similar words is not sufficient).

“Claim-like” clauses on pages 119-130 must be deleted (Guidelines F-IV, 4.4).

The literature cited in the description should not be "incorporated by reference" (Guidelines F-III, 8).